

An Act

ENROLLED HOUSE
BILL NO. 3919

By: Pfeiffer of the House

and

Kern of the Senate

An Act relating to counties and county officers;
amending 2 O.S. 2021, Section 15-68, which relates to
the board of directors for the free fair association;
allowing board of county commissioners to vote to
have a five-member board; providing manner in which
five-member board shall be elected; and providing an
effective date.

SUBJECT: Counties and county officers

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 2 O.S. 2021, Section 15-68, is
amended to read as follows:

Section 15-68. A. There is hereby constituted a board of
directors for the free fair association.

B. 1. The board of directors shall be composed of nine (9)
members, unless the board of county commissioners determines by vote
to form a five-member board of directors under subsection I of this
section, who shall be by written ballot elected for a term of three
(3) years. Three members shall be elected annually, one from each
county commissioner's district of the counties, at a public meeting
or convention of the qualified electors of each commissioner's
district in the counties.

2. A qualified elector shall be a registered voter of the
county and may only vote for the board members from the district in
which the elector resides. The county commissioner holding the

election may request proof of residency and a voter registration card of the county to qualify electors.

3. The board of county commissioners shall include in the publication notice of the election the requirements to be a qualified voter. Notice of the election shall be given by publication in a newspaper published in each of the counties for ten (10) days before the election. Notice of the filing period for the election shall be given in a newspaper published in the county, published one time at least ten (10) days before the filing period for the election.

C. The board of county commissioners shall, by resolution, set forth the following conditions concerning the election:

1. The filing period shall consist of five (5) consecutive business days and commence in January;

2. The date and time the filing period will commence and end;

3. The date, time and place of the election;

4. Only registered voters of the county are eligible to file as a candidate;

5. Any person so filing must reside in the commissioner's district or city they seek to represent;

6. Prospective candidates must file with the county clerk; and

7. The board of county commissioners shall prescribe a form to be used by prospective candidates filing for the position of director of the fair association board.

D. 1. The date of the election for the fair association board of directors shall be no later than three (3) weeks from the date of the final day of the filing period. If there is only one candidate for any of the commissioners' districts, the commissioners may cancel the election with notice being given by publication and posting at least ten (10) days prior to the election date previously established and the candidate shall be deemed to be elected.

2. In the event there is no candidate for the election to the fair association board of directors, the county commissioners shall appoint a director for each position for which no candidates have

filed by the close of the filing period. The appointment or appointments will be announced no later than two (2) weeks from the closing of the filing period.

3. When a director is unable to fulfill the term to which the director has been elected to serve, for any reason, the board of county commissioners shall appoint the successor.

E. For a nine-member board:

1. At the annual election there shall be elected one (1) person from each commissioner's district who is a qualified elector of the district. Each shall serve as a director of the association for a term of three (3) years, and until a successor is elected or appointed and qualified.

2. The commissioner or commissioner's designee shall preside at the meeting and have the authority to appoint a secretary of the meeting. The commissioner and secretary shall certify to the county clerk of each of the counties the names of the directors elected, and the county clerk shall keep a record thereof and shall issue to each person elected a certificate of election.

F. When a tie vote occurs in the election of a fair association board of directors, the commissioner or commissioner's designee shall select the candidate by lot pursuant to the procedures set forth in Section 8-105 of Title 26 of the Oklahoma Statutes.

G. 1. The directors so elected shall meet at the next regularly scheduled monthly meeting immediately following the elections at the regular meeting place of the counties for the purpose of organization, and shall elect a president, a vice-president, a secretary and a treasurer; provided, that the secretary need not be a member of the board of directors.

2. The treasurer shall furnish a surety bond executed with a qualified surety company doing business in this state, in such amount as the directors of the board may determine to be necessary to indemnify against any loss which may arise by reason of failure to perform the necessary duties of the office or other misconduct in office for which the director shall be held liable.

H. Meetings of the directors may be called by the president of the board or fixed by the board at any time convenient. However, the first election held under this section shall be on the first

Saturday of June, and the board so elected at the election shall meet for organization purposes on the second Saturday of June of such year.

I. Upon a vote of the board of county commissioners, the board of directors for the free fair association shall be composed of five (5) members, who shall be by written ballot elected for a term of three (3) years. A five-member board of directors shall function the same as a nine-member board and be subject to all of the requirements of a nine-member board except as described in this subsection or otherwise indicated in this section. The members shall be elected at a public meeting or convention of the qualified electors of each commissioner's district in the counties as follows:

1. One member from each county commissioner's district shall be elected by the respective qualified electors of each commissioner's district; and

2. Two members shall be elected as members at large by all of the qualified electors of the county.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 24th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 28th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____